José R. Bernal
118 NW Jackson Ave. Apt. 304 | Corvallis, Oregon 97330
541-228-8481 | jbernal.web.dev@gmail.com

February 26, 2026

Sean O'Day
Director, Department of Consumer and Business Services
P.O. Box 14480
Salem, OR 97309-0405

RE: Request for enforcement action and official investigation of unpermitted tenant improvements related to Corvallis Development Services and mechanical permit MEC25-00468; Copies to The Honorable Tina Kotek, Governor of Oregon; The Honorable Dan Rayfield, Attorney General via Oregon Department of Justice; Chief Mariana Ruiz-Temple, Oregon State Fire Marshal.

Director O'Day,

For more than a year, residents of The Jax, a mixed-use building where I reside, in Corvallis, Oregon have been regularly exposed to kiln emissions from CeramiCafe, a downstairs commercial ceramics studio. The studio uses products that contain metal pigments including cadmium – a known carcinogen. When fired, these products emit combustion byproducts and large amounts of metal particulates known to have chronic health effects.

This situation was avoidable, however:

- Multiple parties sidestepped Oregon State Building Code requirements intended to ensure tenant improvements (TI) are evaluated and permitted.
- Contractors performed building, electrical and mechanical work without permits.
- CeramiCafe operated for months without inspection and without Certificate of Occupancy.
- Corvallis Development Services (CDS) retroactively permitted the work.
- Upon appeal, the Oregon Mechanical Board failed to conduct a fair hearing pursuant ORS 455.070.

This situation can be remedied within DCBS. You have broad statutory authority under ORS 455.770 and 455.775 to address these building code violations and lapses of enforcement. The events in question took place from late 2024 through September, 2025. I formally request that you use your enforcement and investigatory authority to:

1. **Take appropriate enforcement action to remedy the ongoing exhaust hazards at CeramiCafe at 118 NW Jackson Ave., Corvallis, Oregon.**
2. **Schedule an appropriate Appeal of the June 30, 2025 "Report of Suspected Code Violation" to be conducted consistent with ORS 455.070.**
3. **Discover what role private and public entities played in allowing unpermitted work at The Jax, and in perpetuating building code violations, both before and subsequent to the Report of Suspected Violation; and**
4. **Identify whether BCD adequately fulfilled its administrative and statutory obligations outlined in ORS 455.070 with respect to the Appeal of CDS MEC25-00468.**

Information related to this request follows and includes Summary and background, Facts, Procedural errors, Exhibits.

Summary and background:

The Jax is a mixed-use, four-story building located at 118 NW Jackson Ave. in Corvallis Oregon. It is situated as 27 units of residential apartments atop two first-floor commercial tenants.

This is the current situation:

1. CeramiCafe exhausts kiln emissions at the entrance to The Jax.
2. The kilns exhaust below residential doors, windows, and balconies creating re-entry.
3. Kilns fire and exhaust overnight for up to 12 hours at a time.
4. Residents, including retirees, families and students, are regularly exposed to kiln emissions.
5. The kiln exhaust system is not installed per manufacturer's instructions, creating additional hazards for residents and the business' customers and employees.
6. Neither Corvallis Development Services (CDS) nor the Oregon Mechanical Board have provided remedy from this exhaust or enforced the State of Oregon Building Code.

The unpermitted work resulting in this situation was brought to the City of Corvallis' attention, but instead of enforcing the building code, Corvallis Development Services (CDS) and, subsequently, the Oregon Mechanical Board, failed in their duty to enforce the code by, respectively:

A. Retroactively permitted already completed mechanical, building and electrical work, without modifications to preserve residents' health and safety; and
B. In the case of appeal of MEC25-00468, not following appeal procedures nor providing enforcement to remedy violations resulting from the applicant's unpermitted work.

In late 2024, the applicant, CeramiCafe, Inc., took possession of The Jax Suite 101 in Corvallis, Oregon. Subsequently, licensed Oregon contractors completed electrical, building, and mechanical work at this location without permits or oversight from any jurisdiction.

On June 30, 2025, this complainant, together with another resident, filed a formal complaint regarding the exhaust hazard with Corvallis Development Services (CDS). Although specific to the kiln exhaust system, the complaint made CDS aware that no other permits had been filed for completed work on the project. Subsequent to our complaint, CDS retroactively permitted the exhaust system in question, without modifications. The jurisdiction also retroactively permitted the electrical and building work associated with the TI application, CDS APP25-00190.

(continued on next page)

Facts of the suspected violation and timeline:

These are the series of events that transpired between the time CeramiCafe's tenant improvements started, the Report of Suspected Violation, and the appeal to the Oregon Mechanical Board:

Date	Event
Dec. 2023	Previous commercial tenant Barre3 closes. Suite 101 sits vacant for two years.
Dec. 2024	CeramiCafe begins building, electrical, and mechanical tenant improvements (TI) without permits.
Jan. 2025	Premiere Electric installs two 208v circuits for kilns; two Skutt Electric Kilns installed.
Jan. 30	CeramiCafe holds Soft Opening.
Apr. 28	Sterling Management, Inc., The Jax's landlord, notified of noxious fumes venting at building entrance.
Apr. 29	Sterling Management claims to have inspected the Ceramic Café and the venting. Also claims to have reviewed "records for the inspection from the City of Corvallis" and concludes "there are no toxic fumes coming from the kilns."
May 1	Sterling Management informed that no permits for CeramiCafe are on file with the City of Corvallis.
May 2	Premiere Electric registers Minor Electrical Label permit ELS-1120-500 for "Dryer Circuit" in State of Oregon Minor Electrical Label database.
Jun. 30	José Bernal and another resident submit complaint of kiln exhaust to CDS; no building or mechanical permits filed; no electrical permit at CDS; and no TI application filed. No permits for seven months.
Jul. 9	CDS issues Oregon Mechanical Specialty Code (OMSC) violation citing location of product-conveying kiln exhaust at operable openings and creating exhaust nuisance.
Jul. 14	CeramiCafe, Inc. representative states in email, "Premiere Electric pulled permit ELS-1120-500 Jan. 7, 2025."
Jul. 23	CDS removes product-conveying exhaust violation from Plan Review documents with no explanation and marks section "resolved"; CDS also notes that no Minor Electrical Label is on the panel.
Jul. 30	CDS Building Official Calvin Albers notifies complainant that kiln exhaust will be reclassified as *environmental air*.
Ju. 31	José Bernal requests clarification on *environmental air* classification of kiln exhaust from Mechanical and Energy Systems Engineer Mark Heizer.
Aug. 1	In response to a follow-up inquiry from Mark Heizer, José Bernal provides links to Skutt electric kiln and *Envirovent 2* exhaust system.

Aug. 4	Mark Heizer advises in writing to José Bernal that kiln exhaust from Skutt electric kilns would not be classified as *environmental air*.
Aug. 7	José Bernal submits documents notifying building inspector and official that kilns are processing materials containing listed hazards of silica, cadmium, metals, and other combustibles; informs CDS that applicant has provided incorrect Safety Data Sheets.
Aug. 7	Calvin Albers confirms to the complainant that he is in possession of submitted documents.
Aug. 8	CDS approves mechanical permit without subcontractor listed; all other permits approved.
Aug. 18	Calvin Albers notifies appellant that permits were approved, providing a new set of justifications for reclassification of *environmental air*. Certificate of Occupancy issued for CeramiCafe.
Sept. 7	José Bernal submits appeal of CDS MEC25-00468 to Mark Heizer and BCD Senior Policy Advisor Andrew Boulton.
Sept. 8	Mark Heizer notifies appellant that BCD is in receipt of the appeal.
Sept. 17	Mark Heizer evaluates *Envirovent 2* installation instructions.
Sept. 17	Andrew Boulton notifies appellant of emergency mechanical board meeting with 24 hours notice.
Sept. 18	José Bernal submits prepared testimony via email to BCD should oral testimony not be allowed; appeal heard in Oregon Mechanical Board emergency meeting, 2 p.m. at BCD, Salem, Oregon.
Sept. 19	Todd R. Smith (then Policy and Technical Services Manager) informs the appellant of the results of the Appeal per ORS 455.070(3).

Despite the initial June 30 complaint for suspected building code violations, and subsequent appeal, residents of the Jax continue to be exposed to exhaust from kilns firing products containing known carcinogens.

Oregon Mechanical Board Appeal hearing procedural errors and inconsistencies:

The Sept. 18, 2025 Appeal was submitted pursuant ORS 455.070(3), "Report of Suspected Code Violation." ("Report") The original Report complained of inhalation exposure to kiln fumes from an exhaust system configured and installed below apartments. The work had been performed by the applicant without permits. This Report was submitted into the record as part of the Appeal (Exhibit A). The following are the issues with this Appeal:

1. The Appeal was conducted as an appeal of a permit per ORS 455.475 and not, as it should have been, per ORS 455.070. The original Report should have informed the scope and evidentiary basis for the Appeal.

2. It should have been the appellant's burden to demonstrate, per the violations cited in the original Report, that the building official had not taken adequate actions to remedy those violations – violations that were a result, not of the building official's permitting, *but of the applicant's unpermitted work*. Instead the proceedings turned into a referendum on whether the building official could plausibly issue a permit in this case.

3. Asked by the chair to provide technical assessments, Mechanical and Energy Systems Engineer Mark Heizer ruled out discussion of alternate installations and limited the hearing to "whether there are words in the code suitable for overruling the local jurisdiction's determinations." Subsequently, the board did not further discuss modifying the exhaust installation parameters (https://vimeo.com/1123647418#t=23m30s).

4. During the Appeal, several board members stated their conclusions were intended to "support the local building official" and it was suggested that no criteria could be used to evaluate the building official's application of the code when dealing with vague terms like "nuisance."

5. Mr. Heizer proceeded to testify, directly contradicting the June 30, 2025 Report, that the vent was too high to cause a nuisance and that any kiln exhaust smell was comparable to the smell of dryer lint or fabric softener. No evidence was offered for this comparison (https://vimeo.com/1123647418#t=34m35s).

6. Asked by the board about the crucial distinctions between product-conveying and *environmental air* exhaust classification, Mechanical Chief Mark Heizer stated the determination regarding the kiln exhaust "could go either way" (https://vimeo.com/1123647418#t=35m56s). **Mr. Heizer did not disclose his written opinion of Aug. 4, 2025, that "The [kiln] exhaust would not be considered environmental air [... and that] it does produce heat/off-gassing from the ceramics." *(Exhibit B)*.**

7. Board member Kevil Duell addressed the Safety Data Sheets (SDS) for the products fired in the kiln indicating that the firing process was likely releasing some substances from the glaze products above the vent termination (https://vimeo.com/1123647418#t=32m30s). The board did not further discuss these exhaust hazards.

8. **The Division stated the *Envirovent 2* exhaust system at CermiCafe had been installed per manufacturer's instructions (MII). It is not installed per MII, nor is its installation *listed*. The installed exhaust blower is trying to push combustion byproducts and fumes through 30 ft. of dryer duct located inside CeramiCafe. The device is only UL 499 *listed* when used as a negative-pressure exhaust system (*Exhibit C*, https://vimeo.com/1123647418#t=38m00s).**

9. Chair Hansen motioned for a vote on the question: That there was no code violation. Board Member Kevin Duell voted "abstain," after which the state-employed board recorder interrupted the proceeding to ask why he voted this way. Mr. Duell responded, "Because I don't think it's clear" (https://vimeo.com/1123647418#t=47m39s).

10. On Sept. 19, the BCD was praised for "appropriately navigating the appeal" (https://www.bcdupdate.org/blog/archives/09-2025).

11. Draft minutes of the Sept. 18 Appeal did not accurately reflect the Appeal proceedings, and important technical references necessary to evaluate the record were missing. Mr. Duell made corrections to the meeting minutes during the Dec. 3 meeting, to restore concerns shared during the Appeal about substances being emitted in the kiln exhaust.

12. During Mr. Duell's Dec. 3 oral corrections to the minutes, a series of exchanges occurred between the board chair and BCD recorder that raise serious concerns about the professional tone of the meeting and the board's commitment to accurately reflect its deliberations before the public.

Overall, these events call into question whether the Sept. 18, 2025 Appeal was conducted fairly.

While the events of the Appeal alone are concerning, The cumulative nature of the Appeal together with the circumstances, facts, and actors causing this harm merit immediate enforcement of the building code and an investigation into this matter. I ask that you use your authority to immediately halt this exhaust hazard and ask that the Mechanical Board schedule an appropriate rehearing of the appeal pursuant ORS 455.070. I also ask that you pursue an investigation into this matter with rigor, and assign to it resources appropriate to the expansive persons and subject matter. Additional documents regarding this matter can be made available to you.

Respectfully,

José Bernal
118 NW Jackson Ave., Apt. 304
Corvallis, Oregon 97330
(541) 228-8481
jbernal.web.dev@gmail.com

/ Enclosures
/ Copies To

Exhibit A

Original Report of Suspected Code Violation, submitted to Corvallis Development Services (CDS) June 30, 2025.

June 30, 2025

To: Kevin Russell
Development Services Division Manager
Kevin.Russell@corvallisoregon.gov
Cc: Mark Shepard, City Manager
city.manager@corvallisoregon.gov

Cc: Briae Lewis, Ward 2 City Councilor
briae.lewis@corvallisoregon.gov
Cc: Beery, Elsner & Hammond, LLP
info@behlaw.com

Mr. Russell,

We are writing to make you aware of building exhaust issues affecting residents of the Jax apartment complex located at 118 NW Jackson Ave. The Jax is a mixed-use four-story 27-unit residential building with two first-floor commercial tenants. CeramiCafe, one of the first-floor tenants, is venting exhaust from their high-temperature kilns at a regularly-used resident lobby entrance. These kilns fire ceramics for hours at a time, at temperatures up to 1,800°F, and are known to produce carbon dioxide, carbon monoxide, sulfur gasses and other fumes. One of the goals of a proper ventilation system should be to reduce residents' exposure to this exhaust. However, the location of the exhaust vent is problematic: it is within close proximity to the building entrance and under residents' balconies. Since the business opened, residents now regularly walk past the CeramiCafe kiln exhaust vent to gain access to the building. This places residents in regular contact with noxious kiln exhaust. Since the vent is located near the building entrance, exhaust also collects at and inside the residents' first-floor lobby. Furthermore, the vent exhausts at a location directly below residents' balconies, so some residents can smell the exhaust from their outdoor balconies as it rises.

This ventilation scheme too readily exposes residents to exhaust. CeramiCafe's installation of the ventilation system modified what was originally intended as a clothes-dryer vent. This modification has neither been permitted nor inspected. Although CeramiCafe began a mechanical exhaust permitting application with Development Services on June 20th, they have not completed it, and the unpermitted system has remained in use since winter when the business opened. Therefore, there has been no determination that the current ventilation scheme ensures the health and safety of all tenants in the building, especially by:

- Ensuring vent and exhaust mechanisms and surrounding building materials are rated for the quality and temperature of exhaust to prevent contamination and fire hazard,
- Avoiding venting exhaust where it places residents in regular contact with exhaust fumes, for example near building entrances or walkways or where it would readily reach residents' units or balconies.

We ask that you reply to this request no later than Thursday, July 3 with an appropriate plan that:

- Enforces the required City of Corvallis permitting for exhaust and related ductwork at the CeramiCafe location at 118 NW Jackson Ave. #101,
- Schedules an expedited inspection of the existing exhaust system to ensure compliance with Oregon Building Codes Division (BCD) code and standards,
- Issues required guidelines to CeramiCafe for a mechanical exhaust system that meets BCD standards for exhausting in a mixed-use residential building, away from building entrances and ventilated in a way that minimizes residents' exposure to exhaust.

We look forward to your assistance in this matter. Please contact us should you need additional information.

Susan Donahue, Jax Resident
118 NW Jackson Ave. #407
sd2727@yahoo.com
(516) 488-7051

José Bernal, Jax Resident
118 NW Jackson Ave. #304
jbernal.web.dev@gmail.com
(541) 228-8481

Exhibit B

Correspondence with Mechanical and Energy Systems Engineer Mark Heizer clarifying the definition of *environmental air* as it related to a Skutt electric kiln and Skutt *Envirovent 2* exhaust system. This written conversation took place between Jul. 31, 2025 - Aug. 4, 2025. Highlights are Mr. Heizer's.

Gmail Jose Bernal <jbernal.web.dev@gmail.com>

definition of environmental air

4 messages

Jose Bernal <jbernal.web.dev@gmail.com> Thu, Jul 31, 2025 at 5:12 PM
To: Mark.R.HEIZER@dcbs.oregon.gov

Hi Mark,

I'd like to know about the accepted (both "common" and technical) working definition of "environmental air" (i.e., environmental air exhaust) in the context of OMSC 501.3.1 "Location of Exhaust Outlets".

The online version and IMC and OMSC seem to use a straight-forward definition for environmental air:

"Air that is conveyed to or from occupied areas through ducts that are not part of the heating or air-conditioning system, such as ventilation for human usage, domestic kitchen range exhaust, bathroom exhaust, domestic clothes dryer exhaust and parking garage exhaust."

For the purposes of 501.3.1 the definitions for environmental air (and by extension, hazardous exhaust) have consequences related to building design, specifically how to direct exhaust away from building openings, with practical consequences on the design and placement of exhaust ductwork and terminations.

I am in contact with a client who is convinced that exhaust from their two commercial-grade electric kilns should be treated as environmental air for the purposes of 501 OMSC. Although I am at a loss as to how they would arrive at that classification, as this doesn't seem consistent with the definitions set out in IMC or OMSC. Neither am I finding a lot of wiggle room in this interpretation on the BCD website.

Is this definition really subject to interpretation in practice? And can you provide additional guidance as to the "common" definition as understood by building code practitioners and builders, and a "technical" definition that could definitively determine whether kiln exhaust could every qualify as environmental air?

Thank you for you assistance.

Best regards,

José Bernal

José Bernal
Web/Application Engineer
Oregon Criminal Defense Lawyers Association
Cell 541-228-8481
jbernal.web.dev@gmail.com

HEIZER Mark R * DCBS <Mark.R.HEIZER@dcbs.oregon.gov> Fri, Aug 1, 2025 at 7:38 AM
To: Jose Bernal <jbernal.web.dev@gmail.com>
Cc: MARTINO Tami * DCBS <Tami.MARTINO@dcbs.oregon.gov>, WILLIAMS Jeremy G * DCBS <Jeremy.G.WILLIAMS@dcbs.oregon.gov>

Jose,

Thank you for your inquiry. Before digging further into the questions, it would help in my response to know the following:

- Is the question regarding an installation in a dwelling/residential property (covered by the Oregon Residential Specialty Code) or a commercial property (Oregon Mechanical Specialty Code)?
- Can you clarify “commercial grade kiln”? Both the ORSC and OMSC have installation requirements for kilns (ORSC M1904 and OMSC 923). Much of the Oregon-specific language is for installations of unlisted equipment, which may not include manufacturer’s installation instructions (MII). The MII list

methods to safely install the equipment, relative to the "listing" = meeting the conditions used during the testing for safety required to be a "listed" piece of equipment.

- Is the ventilation/exhaust connected to the kiln or from a hood over the kiln? Or is the question relative to an exhaust fan discharging from the space where the kilns are located? This will assist with any review of the application of *environmental air* vs. other exhaust discharge types.

As a reminder, review and permitting of installations are the exclusive authority of the local city/county building department. The building official would make the determination of the code application and any interpretation of the code relative to site-specific permits. We at the Division can give general interpretation of the statewide code, citing specific application relative to general installation conditions. If you can provide the requested additional information, we can better point you the applicable code sections and cite general interpretation of the code.

Regards,

Mark Heizer, PE, LEED AP **I** Mechanical and Energy Code Engineer

Oregon Building Codes Division I PO Box 14470
Salem, OR 97309-0404 **I 971-600-6821 Cell**

http://www.oregon.gov/bcd

BCD Building Codes Division
Department of Consumer and Business Services

From: Jose Bernal <jbernal.web.dev@gmail.com>
Sent: Thursday, July 31, 2025 5:12 PM
To: HEIZER Mark R * DCBS <Mark.R.HEIZER@dcbs.oregon.gov>
Subject: definition of environmental air

You don't often get email from jbernal.web.dev@gmail.com. Learn why this is important

[Quoted text hidden]

Jose Bernal <jbernal.web.dev@gmail.com> Fri, Aug 1, 2025 at 9:13 AM
To: HEIZER Mark R * DCBS <Mark.R.HEIZER@dcbs.oregon.gov>

Mark,

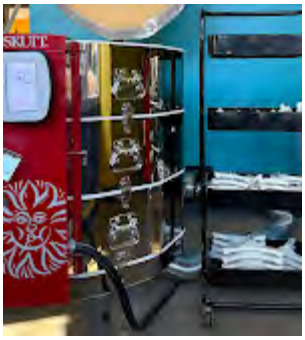
I've included answers to your questions, below; and I've attached photos of the kilns. In the second (skutt-kiln-2.png) you might be able to tease out the exhaust hoses making up the downdraft system connected to the wall (installed ductwork) which then directly vents outside the building. I understand local building departments will likely play an important role in permits/determinations. Just trying to get a sense for what parts of the code play a role in that and the accepted definitions.

- Is the question regarding an installation in a dwelling/residential property (covered by the Oregon Residential Specialty Code) or a commercial property (Oregon Mechanical Specialty Code)?
    - **Perhaps both as the installation is in a mixed-use building with both first-floor commercial (where the kilns are installed) and three floors (floors 2-4) of residential apartments. So two different occupancies per IBC 302..1.**
- Can you clarify "commercial grade kiln"? Both the ORSC and OMSC have installation requirements for kilns (ORSC M1904 and OMSC 923). Much of the Oregon-specific language is for installations of unlisted equipment, which may not include manufacturer's installation instructions (MII). The MII list methods to safely install the equipment, relative to the "listing" = meeting the conditions used during the testing for safety required to be a "listed" piece of equipment.
    - **A kiln whose size and capacity would suit commercial, studio, or educational applications. You wouldn't expect a kiln this size to be installed for use in hobbyist applications. Here is a link to the kiln in question (of which two are installed):**
        - **https://skutt.com/products-page/ceramic-kilns/kmt-1627-3pk/**
- Is the ventilation/exhaust connected to the kiln or from a hood over the kiln? Or is the question relative to an exhaust fan discharging from the space where the kilns are located? This will assist with any review of the application of *environmental air* vs. other exhaust discharge types.
    - **This is a downdraft style kiln ventilation system that is connected directly to the kilns and vents through a previous installed dryer vent accessory. The source of the exhaust is not a room or other occupied space but the kilns directly. Here is a link to the installed vent system:**
        - **https://www.theceramicshop.com/product/1776/envirovent-2-skutt/**

Thank you,

José
[Quoted text hidden]

2 attachments



skutt-kiln-2.png
2852K



skutt-kiln-1.png
3502K

HEIZER Mark R * DCBS <Mark.R.HEIZER@dcbs.oregon.gov> Mon, Aug 4, 2025 at 7:33 AM
To: Jose Bernal <jbernal.web.dev@gmail.com>
Cc: MARTINO Tami * DCBS <Tami.MARTINO@dcbs.oregon.gov>, WILLIAMS Jeremy G * DCBS <Jeremy.G.WILLIAMS@dcbs.oregon.gov>

Jose,

Thank you for the additional information and the photo below. I've noted the exhaust connection to the kiln.



The review by the local building official would take into account the occupancy of the space, which if a full production facility would be a low-hazard F-2 factory for fire & product storage concerns.

306.3 Low-hazard factory industrial, Group F-2. Factory industrial uses that involve the fabrication or manufacturing of noncombustible materials that during finishing, packing or processing do not involve a significant fire hazard shall be classified as F-2 occupancies and shall include, but not be limited to, the following:

Beverages: up to and including 16-percent alcohol content
Brick and masonry
Ceramic products
Foundries
Glass products
Gypsum
Ice
Metal products (fabrication and assembly)
Wood barrel and bottled wine aging facilities in *wineries*

From the OSSC regarding classification as a hazardous location:

HAZARDOUS LOCATION. Any location considered to be a fire hazard for flammable vapors, dust, combustible fibers or other highly combustible substances. The location is not necessarily categorized in the *Building Code* as a high-hazard use group classification.

As for the exhaust and any regulation under the OMSC:

- The exhaust would not be considered environmental air; it is not taken directly from the space or a specific appliance listed as environmental (residential dryer).
- It appears the units are electric; with no products combustion, Appendix C requirements for gas appliances is not applicable.
- The exhaust would not be considered hazardous under the OMSC. As a discharge from an appliance that does produce heat/off-gassing from the ceramics, it would likely be considered “other product conveying outlet” for setting the exhaust discharge location. See OMSC 501.3.1., Part 2.

501.3.1 Location of exhaust outlets. The termination point of exhaust outlets and ducts discharging to the outdoors shall be located with the following minimum distances:

1. For ducts conveying explosive or flammable vapors, fumes or dusts: 30 feet (9144 mm) from property lines; 10 feet (3048 mm) from operable openings into buildings; 6 feet (1829 mm) from exterior walls and roofs; 30 feet (9144 mm) from combustible walls and operable openings into buildings that are in the direction of the exhaust discharge; 10 feet (3048 mm) above adjoining grade.

2. For other product-conveying outlets: 10 feet (3048 mm) from the property lines; 3 feet (914 mm) from exterior walls and roofs; 10 feet (3048 mm) from operable openings into buildings; 10 feet (3048 mm) above adjoining grade.

As per Section 501.3, “the air removed by every mechanical exhaust system shall be discharged outdoors at a point where it will not cause a public nuisance and not less

than the distances specified in Section 501.3.1”

So these are the primary factors that the local building official would consider when reviewing the installation.

Let us know if you have any additional questions or comments.

[Quoted text hidden]

Exhibit C
Building plans demonstrating location of Skutt kilns and *Envirovent 2* exhaust system.

C-1 Comparison of detail of submitted plans for CeramiCafe and equivalent Barre3 detail with kiln and exhaust system overlay. 1 page.

C-2 Aug. 8, 2025 rendering included in submitted plans for CeramiCafe. 1 page.

C-3 Oct. 15, 2014 full Barre3 TI floor plan with related kiln and exhaust overlay. 1 page.

Sources

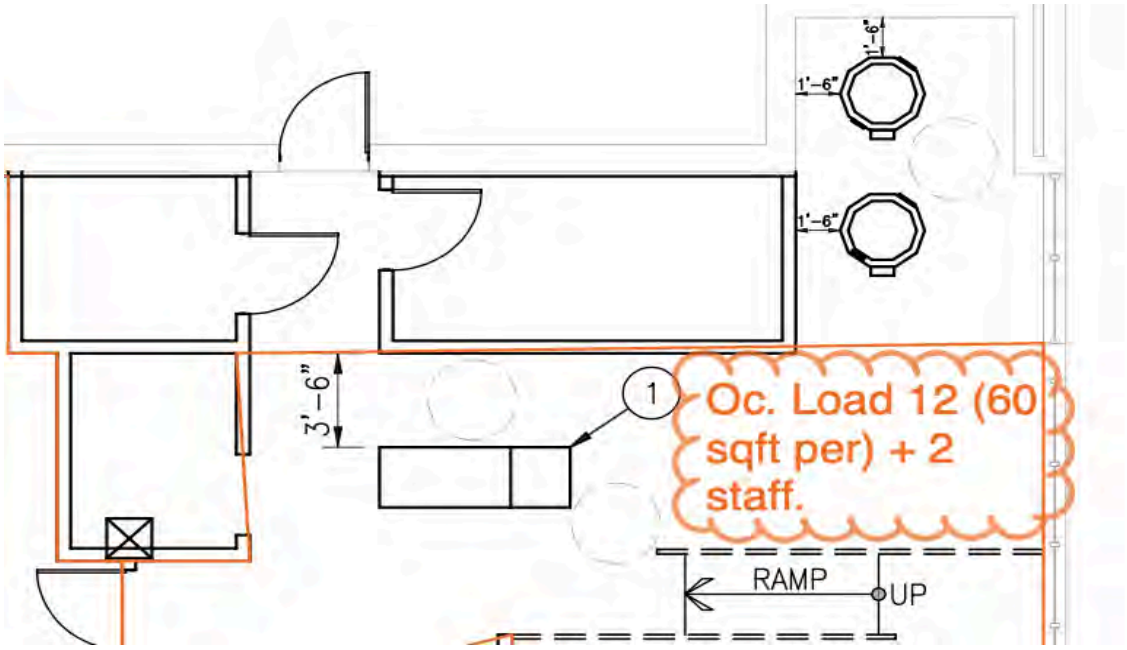
Barre3 Plan noting location of washer and dryer (Accela)
https://archives.corvallisoregon.gov/public/0/edoc/1298142/BLD14-00207%20Plan.pdf

Barre3 project folder including supplemental TI documents (Accela)
https://apps.corvallisoregon.gov/permitLookup/view.aspx?permit=BLD14-00207

CeramiCafe project folder including approved plans (Accela)
https://apps.corvallisoregon.gov/permitLookup/view.aspx?permit=BLD25-00354

Exhibit C-1

Detail #1 The CeramiCafe TI diagram included in approved plans does not accurately depict the scale or location of the kilns; the kilns are not accurately placed relative to the existing dryer duct and the ductwork and exhaust termination are not noted. (This diagram, including the orange annotations, are part of the original approved plans.)



Detail #2 Additions in red by José Bernal denote the CeramiCafe kilns and exhaust system relative to the previous plans for the same space that were submitted to the local jurisdiction as part of the building's original 2014 Tenant Improvement (TI) build-out. The dashed line represents likely location of dryer ductwork, K1 and K2 are Skutt electric kilns, ENV2 is the Skutt *Envirovent 2*. Not indicated: 12 ft. vertical riser at previous dryer vent and location of previously installed Fantech dryer duct booster.

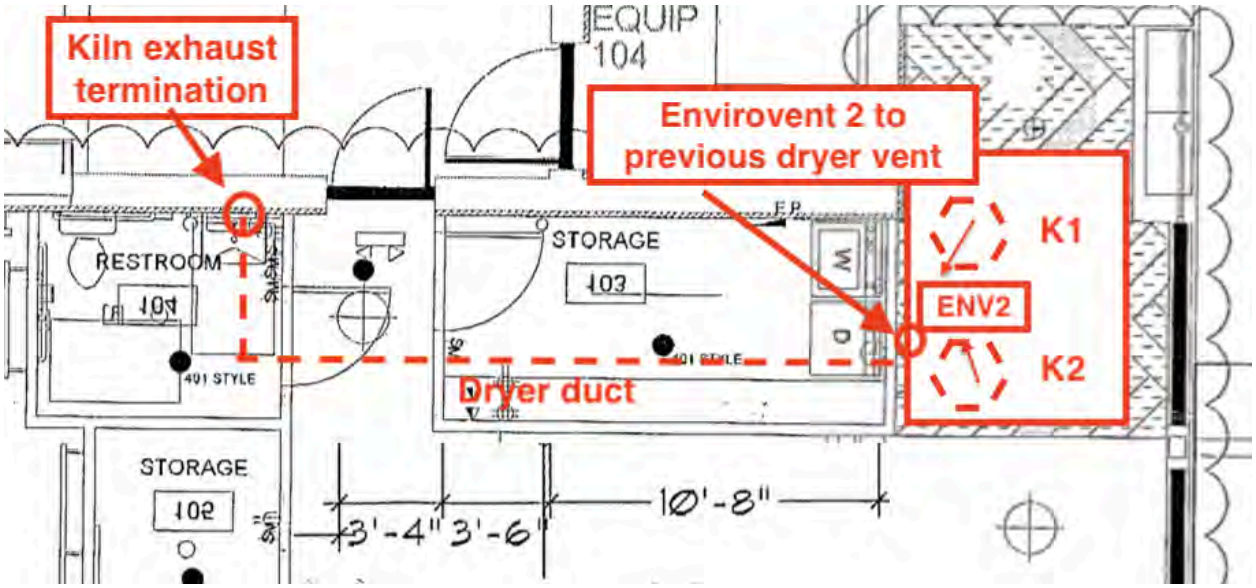


Exhibit C-2 Approved plans missing locations of EQUIP 105 (Elevator control room) and EQUIP 104 (Sprinkler room). The topmost kiln is depicted next to walls that are not external walls, and the kilns do not exhaust at this location but instead exhaust 30 ft. away, including 12 ft. of vertical rise.

Source: CDS ePermitting (Accela) \Community Development\Development Services\Permit Documents\BLD Building Permits\2025\BLD25-00354 CERAMICAFE TI TO RESOLVE IN\Approved Plans.

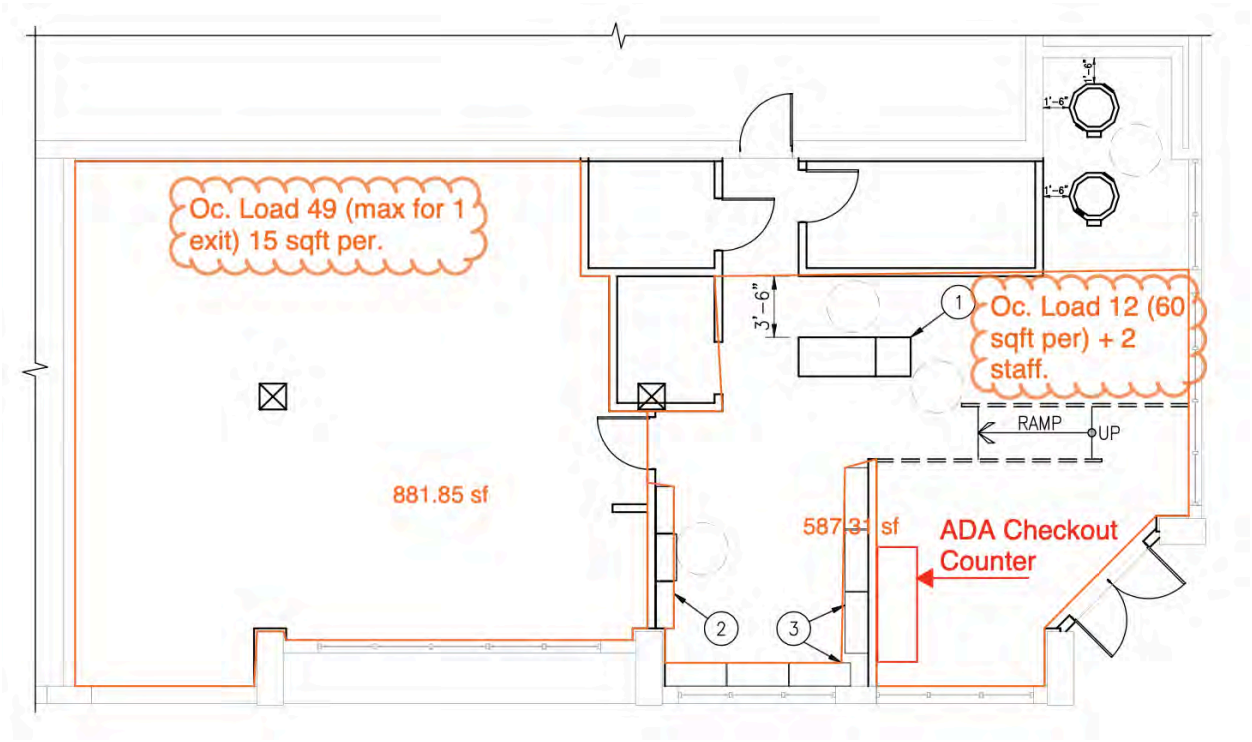
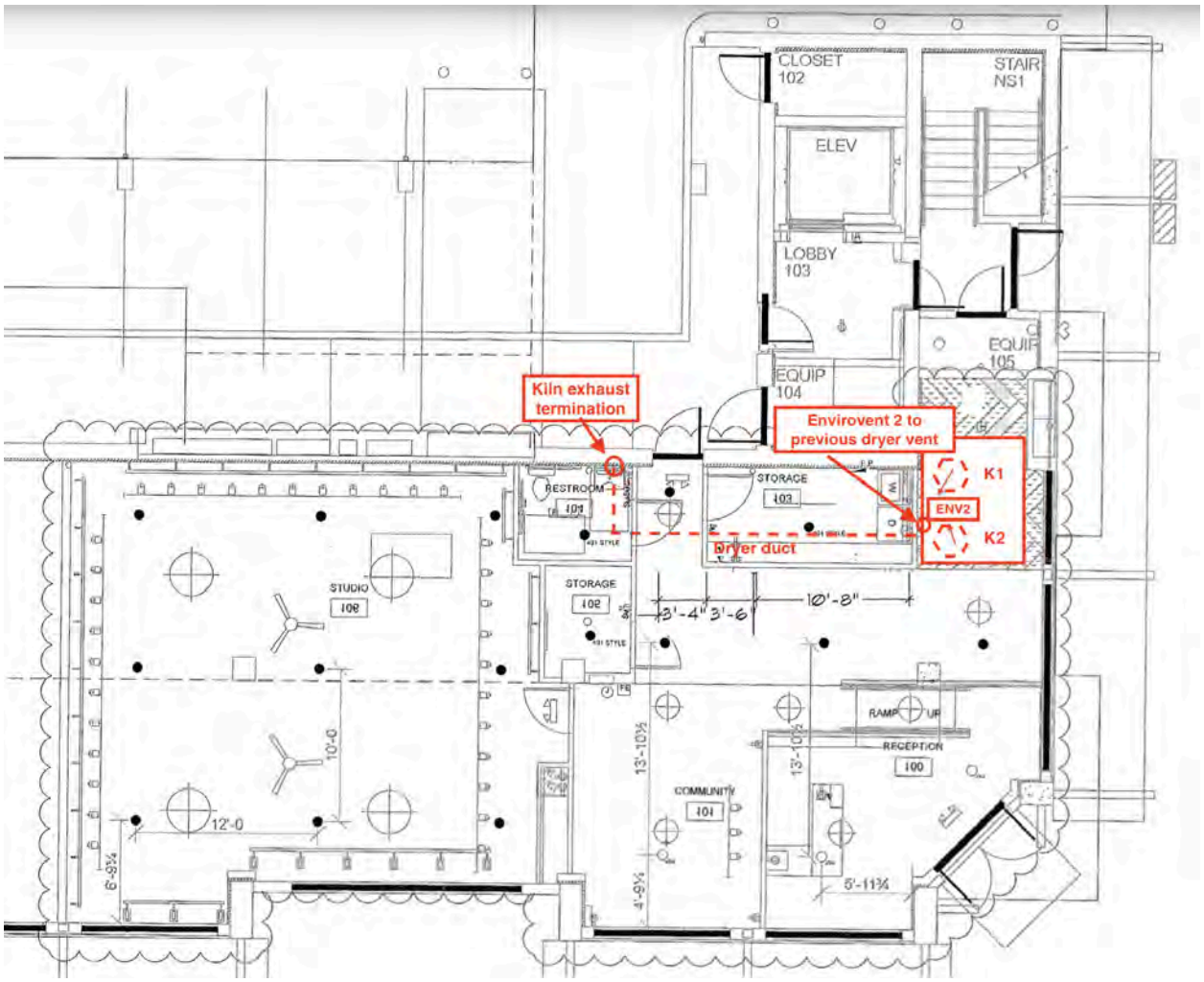


Exhibit C-3 Detailed building plan for original 2014 Barre3 TI build out with kiln overlay showing the complete 1,800 sq. ft. commercial space, to scale. The kilns face a public sidewalk and Jackson Ave., where they are easily viewable along with the *Envirovent 2* configuration. Original available as part of the Accela Barre3 TI Documents repository.



Copies To:

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Governor of Oregon (via Certified Mail)

The Honorable Dan Rayfield
Oregon Attorney General (via Certified Mail)

The Honorable Sara Gelser Blouin
State Senator, District 8

The Honorable Sarah Finger McDonald
State Representative, District 16

Chief Mariana Ruiz-Temple, Oregon State Fire Marshal

Ryan Richards, Chair, Electrical and Elevator Board

Eric Schmidt, SE, CBO, Chair, Building Codes Structures Board

Eric Fanning, Vice-chair, Mechanical Board

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